

**COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26**

**FILED BY: KOSHTA, YEVGENIYA**

**\*TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

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Defendant filed a Motion to Preclude Plaintiff's Account Evidence, on 4/3/26.

The Motion is unopposed, but there is no evidence that Defendant provided notice of the Motion to the Plaintiff.

**Disposition**

This Motion will be continued to 9/22/26, 9am.

Defendant to file Order, and to provide notice of Motion and of hearing to Plaintiff.

**10. 9:00 AM CASE NUMBER: L25-10803  
CASE NAME: WELLS FARGO BANK, N.A. VS. VICTORIA MIGUEL  
HEARING ON SUMMARY MOTION  
FILED BY: WELLS FARGO BANK, N.A.**

**\*TENTATIVE RULING:\***

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**Background**

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Charles Brophy, a Separate Statement of Undisputed Material Facts, and a Memo of Costs. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address for Defendant provided in the Answer.

**Analysis**

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no

dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

#### **Cause of Action: Breach of Contract**

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the Declaration, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Brophy declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, there is no evidence about whether Defendant agreed to the purported terms and conditions. Though Plaintiff provides a copy of the terms, in their Exhibit One to the

Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Contending that the agreement "was made available to Defendant for review and objection," (Paragraph 11, Declaration), is insufficient. Just how was this agreement made available? Did Plaintiff provide any notice to Defendant that the terms were available? There is no statement from Mr. Brophy showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a prima facie showing of the existence of a contract.

#### Disposition

The Court finds and orders as follows:

2. The MSJ is DENIED.
3. Court will prepare the Order.

**11. 9:00 AM CASE NUMBER: L25-11299**

**CASE NAME: WELLS FARGO BANK, N.A. VS. LALEH NIKBAKHT**

**\*HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

**FILED BY: WELLS FARGO BANK, N.A.**

#### **\*TENTATIVE RULING**

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Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/6/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

#### **Analysis**